SECTION 1 · CASE 2

Kleptomania and Class

Two shoplifters, one counter, two verdicts · Department stores in the United States and Britain, 1870s–1900s

From the 1870s, large department stores spread through American and British cities. Goods sat on open counters, and shoppers could handle them freely. Shoplifting rose with them. Many of those caught were middle-class women, the stores' best customers, taking things they could easily afford. Doctors offered an explanation. Since the early nineteenth century, they had described 'kleptomania', an urge to steal. Applied to these women, it turned a crime into an illness. Stores, unwilling to lose respectable customers, often settled such cases quietly.

The diagnosis did not reach everyone. In New York in 1882, Ellen Sardy was caught in a Sixth Avenue department store with three pairs of hosiery and five pieces of silk. Her lawyer admitted the theft and asked for clemency because she had been 'of weak mind'. The court accepted it and she went free. Historian Elaine Abelson, who recovered the case, writes that only middle-class women seemed to suffer from kleptomania: 'stealing by members of other classes was simple theft'.

Owner and loss are identical in both cases, and so is the law. Only the person differs. The act did not decide the label; class did.

OWNER ✓ LOSS ✓ LAW ✓ → Thief: depends on who you are